



Unified School District 232

De Soto – Shawnee – Lenexa – Olathe
www.usd232.org

Brian Schwanz, Ed.S
Chief of Operations

To: USD 232 Board of Education
Dr. Cory Gibson, Superintendent of Schools
From: Brian Schwanz, Chief of Operations
Date: July 2, 2025
Re: JCPRD Lease Agreement (CONSENT)

During the Board of Education's regularly scheduled meeting on July 7, 2025, we ask the Board of Education to approve the lease agreement with Johnson County Parks and Recreation District (JCPRD) for their 2025-2026 before and after school care program as well as their summer 2026 program. The agreement was approved by the JCPRD Board on June 18, 2025. The lease agreement with JCPRD will be presented on the Consent Agenda. As a reminder, any item on the Consent Agenda may be removed for further discussion.

We reviewed the fees JCPRD is paying to the district for its elementary before and after school care as well as its summer program. As you can imagine, the programs JCPRD provides are invaluable to some of our families that need childcare during the summer and before and after school. Currently, the rental fee is \$8 per hour per space at the schools that house JCPRD in the summer as well as before and after school care. JCPRD typically uses two spaces at each school when these services are provided. It has been this rate for the past five years when it was raised from \$7 to \$8 per hour per space. At this time, we are asking the Board to keep the current rates for the 2025-2026 school year and summer 2026 program. We have alerted JCPRD that we will be reviewing our hourly rates and would notify them by February 2026 if we have a small raise for the 2026-2027 school year.

Please contact me with any questions you may have regarding this matter.

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**DE SOTO UNIFIED SCHOOL DISTRICT NO. 232
LEASE AGREEMENT 2025-2026**

THIS LEASE AGREEMENT ("Lease") is made and entered into effective August 1, 2025 ("Effective Date"), by and between DE SOTO UNIFIED SCHOOL DISTRICT NO. 232, JOHNSON COUNTY, STATE OF KANSAS, ("School District" or "Lessor") and the JOHNSON COUNTY PARK AND RECREATION DISTRICT, a park district organized pursuant to K.S.A. 19-2859 et seq., ("Lessee"). Lessor and Lessee may be hereinafter referred to as the Parties.

1. Lease. For purposes of operating various childcare programs ("the Programs") and in accordance with the following:

- (a) Before and After School Program.** The School District hereby leases to Lessee those areas to be designated at the schools ("School" or "Schools"), including reasonable access thereto, identified on Exhibit A, a copy of which is attached hereto and incorporated herein by reference ("Before and After School Premises") for the purpose of conducting its Before and After School Program ("Before and After School Program"). The Before and After School Premises shall include those areas of the School that are reasonably essential for the care and comfort of the children enrolled in the Before and After School Program, including but not limited to restrooms and the facilities of the school nurse. The School District and Lessee understand and agree that the terms and conditions of Exhibit A may, from time to time, be modified and amended by agreement of the School District and Lessee.
- (b) Summer Camp Program.** The School District hereby leases to the Lessee those areas to be designated on the floor plans of the Schools, including reasonable access thereto, identified on Exhibit A, a copy of which is attached hereto and incorporated herein by reference (collectively the "Summer Camp Premises") for the purpose of Lessee conducting therein a summer camp (the "Summer Camp"). The Summer Camp premises in each School shall include one or more classrooms or other suitable instructional spaces in each respective School, the respective School's cafeteria, and, in the event the School's cafeteria is unavailable, the respective School's gymnasium, but only to the extent the classroom(s), cafeteria and gymnasium are not being used for school purposes. The Summer Camp premises shall also include those other areas of the Schools that are reasonably essential for the care and comfort of the children enrolled in the Summer Camp Program, including but not limited to restrooms and the facilities of the school nurse. The School District and Lessee understand and agree that the terms, sites, and conditions in Exhibit A may, from time to time, be modified and amended by agreement of the School District and Lessee.

2. Days and Hours of Operation.

- a) Before and After School Program.** Lessee agrees to conduct the Programs between August 13, 2025 and May 22, 2026 or until such later date to which the 2025-2026 school year may be extended. Lessee agrees to operate the Programs during the hours specified by Exhibit A on those days of the week during the 2025-2026 School Year when the school district is open for classes. Except as provided herein, Lessee shall not operate the Programs during specified holidays for which the School District will provide a list to JCPRD, weekends or those days when School is cancelled due to severe inclement weather when the Superintendent deems it unsafe for School District custodial or maintenance employees to work, or for other reasons.
- b) Summer Camp Program.** Lessee agrees to conduct its Summer Camp Program between June 1, 2026 & July 31, 2026. Lessee agrees to operate its Summer Camp Program during the hours of 7:00 am through 6:00 pm on those days of the week during this time period when the respective school building is open. Except as provided herein, Lessee shall not operate its

Summer Camp Program in any school during specific custodial staff holidays, for which the School District will provide a list to JCPRD, weekends, or those days when the Superintendent deems it unsafe for custodial or maintenance employees to work. Notwithstanding anything in this Lease to the contrary, the Parties agree the Lease Agreement 2025 with an effective date of June 1, 2025, remains in full force and effect, unchanged by this Lease.

3. Suspension of Use of Premises. The Lessor may suspend Lessee's use of the Before and After School Premises (collectively "Premises") at any time, upon thirty (30) days' written notice to Lessee, when it is determined by the Lessor that use of the Premises by the Lessee will conflict with the School District's use of all or part of the Premises, and, upon at least 24 hours' notice, in the event the School District has an emergency need to use the Premises. In the event of a temporarily suspended use of the Premises by Lessee, the Rent provided for in Section 5 herein shall abate on a pro-rata basis and shall be deducted from the monthly Rent then due and payable by Lessee to the School District.

4. Restriction on Use. Subject to the terms and conditions of the Lease, Lessee shall use the Premises for no other purpose than the Programs described in Section 1 (a).

5. Rent.

(a) Rate. During the 2025-2026 School Year and Summer 2026 Program, Lessee agrees to pay Rent to the School District for the use of the Premises at the rate of Eight Dollars (\$8.00) per hour of operation (as defined in Section 2 of this Lease), per Program, per room used, per School. Rent to the School District for use of the Premises for consolidated care shall be paid at the rate of Ten Dollars (\$10.00) per hour of operation. Except as provided elsewhere in this Agreement, such Rent includes all utilities and custodial services within normal workday hours needed by Lessee to operate its Programs on the Premises, which utilities and custodial services shall be provided by the School District. If there is a need of custodial services by the Lessee outside of normal workday hours, the Lessee will be responsible for paying for the custodial overtime at a rate of \$30/hour. The Rent shall be payable in arrears. The School District shall invoice Lessee on or before the 5th day of each month for Rent incurred during the preceding month. Lessee agrees to pay the invoiced amount no later than the 25th day of the month in which the invoice for Rent is rendered by the School District.

(b) Adjustment. The parties agree to make reasonable adjustments in the Rent in the event: (i) this Lease is temporarily suspended by the School District with respect to all or any portion of the Premises, pursuant to Section 3 hereof; (ii) this Lease is terminated, in whole or in part, by either the Lessee or the School District pursuant to Section 7 hereof; or (iii) the School District's actual utility costs and custodial costs increase during the School Year beyond the amount anticipated by the School District at the time this Lease is executed; provided, however, that, such increase apportioned to Lessee shall be based upon Lessee's hourly use of the Premises and the square footage of the Premises used by Lessee and, prior to the School District making an adjustment pursuant to this Section 5.B.iii, the School District shall provide documentation to Lessee, in a form reasonably satisfactory to Lessee, demonstrating such increase.

6. Improvements.

(a) Telephones. The Lessor agrees that Lessee may install and operate, at Lessee's sole cost and expense, a telephone in any portion of the Premises as may be desired by Lessee in the course of operating the Programs, so long as the location selected by Lessee does not interfere with the School District's use of the Premises.

- (b) **Food Storage.** At its option, Lessee may place a refrigerator (to be supplied by Lessee); in or near the Premises at a location to be determined by the School District, for snack foods and drinks that Lessee may serve to Program participants.

7. Term and Termination.

- (a) **Term.** The term of this Lease shall commence on August 1, 2025 and shall continue through July 31, 2026.
- (b) **Termination by Lessee.** The Lessee may terminate this Lease as to any Programs at any or all the Schools at any time upon giving the School District at least sixty (60) days written notice. During said 60-day period, the Parties shall make reasonable efforts to agree to terms and conditions which would enable Lessee to resume the operation of its Programs at the School or Schools affected. In no event will Lessee give its customers notice of modification or cancellation of a Program less than thirty (30) days after written notice of termination is given to the School District.
- (c) **Termination by Lessor.** The Lessor may terminate this Lease with or without cause at any time upon giving the Lessee at least sixty (60) days' notice. Alternatively, in the event the School District determines that Lessee has breached any of the terms or conditions of the Lease or that the warranties or representations herein given are found by the School District to be false, School District shall provide Lessee with notice of such breach. Lessee shall cure such breach within ten (10) days after the date of its receipt of such notice, or if the breach is one which cannot reasonably be cured within ten (10) days, Lessee shall begin taking steps to cure the breach within ten (10) days, and shall completely cure the breach with reasonable promptness. In the event Lessee fails to cure or take reasonable efforts to commence a cure of the alleged breach within the time specified herein, the School District may terminate this Lease upon providing five (5) days written notice to Lessee of Lessee's failure to cure.

8. Representations and Warranties. Lessee warrants, represents and agrees that:

- (a) **Permits and Licenses.** Lessee has obtained all necessary permits and licenses for each Program as required by law or by municipal ordinance and is fully authorized to provide the services intended, and it will continue to be so licensed and authorized throughout the term of this Lease.
- (b) **Insurance.** Lessee has in full force and effect general liability (General Aggregate) insurance coverage in the minimum amount of Two Million Dollars (\$2,000,000.00), as evidenced by a liability certificate that Lessee will keep and maintain such insurance throughout the term of this Lease; and that the School District has been, and will continue to be, listed as an additional insured thereon. Lessee will pay the cost of any increase in insurance premiums incurred by the School District as the result of the operation of Lessee's Programs.
- (c) **Lessee Not an Agent.** Lessee is not the agent of the School District and will not hold itself out as agent of the School District or as offering a program which has either been approved of or is supervised by the School District.
- (d) **Compliance with Laws and Regulations.** Lessee will abide by the laws of the United States and the State of Kansas and all rules, regulations and policies adopted by the Board of Education of the School District and will conform to such administrative orders as may be from time to time issued by the Superintendent of the School District or authorized by him to be issued on his behalf.
- (e) **Availability of Programs.** Each Program operated by the Lessee on the Premises shall be available to all school age children, whether or not they attend the School in which the program is located,

subject to the State of Kansas licensing requirements relating to the maximum number of children that may be located at each location.

- (f) **Availability of Programs for Low-Income Families.** Lessee shall make reasonable arrangements, within the limits of available funding, to accommodate school age children whose parents cannot reasonably afford the standard cost of the Program.
- (g) **Presentation of Documents.** In accordance with all representations and agreements contained in this Section, Lessee is required to provide upon request of the School District: (i) photocopies of all permits and licenses required by any cities or other political subdivisions within which the Programs operate, and by the State of Kansas for operating the Programs; and (ii) a certificate of liability insurance reflecting insurance in effect, and listing the School District as "additional insured."

9. Indemnity.

- (a) **From Lessee to School District; Waiver of Liability by Program Participants.** The School District shall not be liable to the Lessee, or to any third party, for any act or failure to act on the part of the Lessee, its agents, employees or pupils; and the Lessee specifically agrees to indemnify and save and hold the School District free and harmless from any and all losses, damages, costs, expenses and/or judgments arising out of Lessee's use of the Premises and that are proximately caused by the negligent or other actionable fault of the Lessee, its officers, agents or employees. In any agreement between the Lessee and parent(s) of any child for the providing of childcare service, such agreement shall specifically provide, in a form satisfactory to the School District, for a release of liability of the School District and for indemnification of the School District by the parent(s). A sample Release is attached hereto as Exhibit B.
- (b) **Damage to School District Property.** Lessee shall be liable to the School District for any and all damage to any School District property which occurs as a result of the occupancy or use of School District facilities or property by the Lessee, its agents, employees or pupils. Lessee's liability to the School District shall include damage or injury caused by third parties who use and occupy the Schools or property therein with the express or implied consent of the Lessee.

10. Miscellaneous

- (a) **Complete Agreement.** This Lease constitutes the complete understanding between the parties regarding the subject matter hereof. It may be modified or amended only in a written instrument authorized and signed by both parties.
- (b) **Notices.** All notices required or permitted to be given under this Lease shall be delivered by first class mail or email, as follows:

If to School District:

De Soto Unified School District No. 232

35200 W. 91st Street

De Soto, Kansas 66018

Attn: Brian Schwanz, Chief of Operations

Email: brian.schwanz@usd232.org

Office Phone: 913-667-6220

If to Lessee:
Johnson County Park and Recreation District
6501 Antioch Road
Merriam, KS 66202-3637
Attn: Amy Branson, Children Services Specialist
Facsimile: 913-831-3311

- (c) **Governing Law.** This Lease will be governed, construed, and interpreted in accordance with the laws of the State of Kansas.
- (d) **Contractual Provisions Attachment.** The Provisions found in Contractual Provisions Attachment (Form DA-146a), which is attached hereto are hereby incorporated in this Agreement and made a part thereof as required by K.S.A. 72-8201c.
- (e) **Counterparts.** This agreement may be executed in multiple counterparts, each of which shall be fully effective as an original, which together shall constitute only one instrument. A counterpart of this Agreement transmitted by email or other electronic means shall, if it is executed, be deemed in all respects to be an original document. The use of electronic signatures for the execution of this Agreement shall be legal and binding and shall have the same force and effect and effect as if originally signed.

IN WITNESS WHEREOF, the parties have executed this Lease as of the date first above mentioned.

**SCHOOL DISTRICT:
UNIFIED SCHOOL DISTRICT NO. 232, JOHNSON COUNTY, STATE
OF KANSAS**

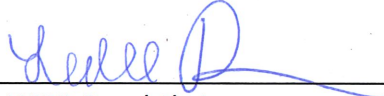
By: President, Board of Education

ATTEST:

Clerk, Board of Education

LESSEE:

**BOARD OF PARK AND RECREATION COMMISSIONERS
JOHNSON COUNTY PARK AND RECREATION DISTRICT**



By: JCPRD Board Chair

APPROVED AS TO FORM:



JCPRD Legal Counsel

**EXHIBIT A
TO
LEASE AGREEMENT BETWEEN
DE SOTO UNIFIED SCHOOL DISTRICT
NO. 232, JOHNSON COUNTY, KANSAS
AND
JOHNSON COUNTY PARK AND RECREATION DISTRICT**

Programs Offered	Schools	Hours of Operation	Floor Plan Attached as Exhibit
Before and After School Program Summer Program	Mize Elementary	7:00 a.m.– 6:00 p.m.	TO BE DETERMINED
	Prairie Ridge Elementary	7:00 a.m.– 6:00 p.m.	TO BE DETERMINED
	Riverview Elementary	7:00 a.m.– 6:00 p.m.	TO BE DETERMINED
	Clear Creek Elementary	7:00 a.m.– 6:00 p.m.	TO BE DETERMINED
	Horizon Elementary	7:00 a.m.– 6:00 p.m.	TO BE DETERMINED
	Belmont Elementary	7:00 a.m.– 6:00 p.m.	TO BE DETERMINED
	Starside Elementary	7:00 a.m.– 6:00 p.m.	TO BE DETERMINED

EXHIBIT B

**SAMPLE RELEASE TO BE INCLUDED IN ANY
"SCHOOL AGE CHILD CARE AGREEMENT"
BETWEEN PARK DISTRICT AND PARENTS OF CHILDREN**

We, the undersigned, parents of _____, acknowledge that the Before and After School Program operated by Johnson County Park and Recreation District ("Park District") is not a program operated or controlled by De Soto Unified School District No. 232, Johnson County, State of Kansas (the "School District"); that the School District is only a lessor of space and has no responsibility whatsoever for the administration or operation of the program, for the selection of any employees to operate the program by the provider thereof, or for any act or omission which may occur while any child is going to, participating in, or going from the program. We, further, acknowledge that the program has not been approved by the School District and will not be supervised by the School District.

We agree that the School District shall not be liable to the undersigned and his/her child(ren) for any act or failure to act on the part of the Park District, its agents or employees, and we release the school district from any liability with reference thereto and promise and agree to save, and hold the School District free and harmless from any and all loss, of any and all nature or kind whatsoever, as the same may relate to any injury suffered or damage sustained by our child(ren) participating in the program or by us.

Date: _____

Signature of Parent or Guardian

CONTRACTUAL PROVISIONS ATTACHMENT

Important: This form contains mandatory contract provisions and must be attached to or incorporated in all copies of any contractual agreement. If it is attached to the vendor/contractor's standard contract form, then that form must be altered to contain the following provision:

The Provisions found in Contractual Provisions Attachment (Form DA-146a, Rev. 07-19), which is attached hereto, are hereby incorporated in this contract and made a part thereof.

The parties agree that the following provisions are hereby incorporated into the contract to which it is attached and made a part thereof, said contract being the ___ day of ___, 20__.

1. Terms Herein Controlling Provisions: It is expressly agreed that the terms of each and every provision in this attachment shall prevail and control over the terms of any other conflicting provision in any other document relating to and a part of the contract in which this attachment is incorporated. Any terms that conflict or could be interpreted to conflict with this attachment are nullified.

2. Kansas Law and Venue: This contract shall be subject to, governed by, and construed according to the laws of the State of Kansas, and jurisdiction and venue of any suit in connection with this contract shall reside only in courts located in the State of Kansas.

3. Termination Due To Lack Of Funding Appropriation: If, in the judgment of the Director of Accounts and Reports, Department of Administration, sufficient funds are not appropriated to continue the function performed in this agreement and for the payment of the charges hereunder, State may terminate this agreement at the end of its current fiscal year. State agrees to give written notice of termination to contractor at least thirty (30) days prior to the end of its current fiscal year and shall give such notice for a greater period prior to the end of such fiscal year as may be provided in this contract, except that such notice shall not be required prior to ninety (90) days before the end of such fiscal year. Contractor shall have the right, at the end of such fiscal year, to take possession of any equipment provided State under the contract. State will pay to the contractor all regular contractual payments incurred through the end of such fiscal year, plus contractual charges incidental to the return of any such equipment. Upon termination of the agreement by State, title to any such equipment shall revert to contractor at the end of the State's current fiscal year. The termination of the contract pursuant to this paragraph shall not cause any penalty to be charged to the agency or the contractor.

4. Disclaimer Of Liability: No provision of this contract will be given effect that attempts to require the State of Kansas or its agencies to defend, hold harmless, or indemnify any contractor or third party for any acts or omissions. The liability of the State of Kansas is defined under the Kansas Tort Claims Act (K.S.A. 75-6101, et seq.).

5. Anti-Discrimination Clause: The contractor agrees: (a) to comply with the Kansas Act Against Discrimination (K.S.A. 44-1001, et seq.) and the Kansas Age Discrimination in Employment Act (K.S.A. 44-1111, et seq.) and the applicable provisions of the Americans With Disabilities Act (42 U.S.C. 12101, et seq.) (ADA), and Kansas Executive Order No. 19-02, and to not discriminate against any person because of race, color, gender, sexual orientation, gender identity or expression, religion, national origin, ancestry, age, military or veteran status, disability status, marital or family status, genetic information, or political affiliation that is unrelated to the person's ability to reasonably perform the duties of a particular job or position; (b) to include in all solicitations or advertisements for employees, the phrase "equal opportunity employer"; (c) to comply with the reporting requirements set out at K.S.A. 44-1031 and K.S.A. 44-1116; (d) to include those provisions in every subcontract or purchase order so that they are binding upon such subcontractor or vendor; (e) that a failure to comply with the reporting requirements of (c) above or if the contractor is found guilty of any violation of such acts by the Kansas Human Rights Commission, such violation shall constitute a breach of contract and the contract may be cancelled, terminated or suspended, in whole or in part, by the contracting state agency or the Kansas Department of Administration; (f) Contractor agrees to comply with all applicable state and federal anti-discrimination laws and regulations; (g) Contractor agrees all hiring must be on the basis of individual merit and qualifications, and discrimination or harassment of persons for the reasons stated above is prohibited; and (h) if it is determined that the contractor has violated the provisions of any portion of this paragraph, such violation shall constitute a breach of contract and the contract may be canceled, terminated, or suspended, in whole or in part, by the contracting state agency or the Kansas Department of Administration.

6. Acceptance of Contract: This contract shall not be considered accepted, approved or otherwise effective until the statutorily required approvals and certifications have been given.

7. Arbitration, Damages, Warranties: Notwithstanding any language to the contrary, no interpretation of this contract shall find that the State or its agencies have agreed to binding arbitration, or the payment of damages or penalties. Further, the State of Kansas and its agencies do not agree to pay attorney fees, costs, or late payment charges beyond those available under the Kansas Prompt Payment Act (K.S.A. 75-6403), and no provision will be given effect that attempts to exclude, modify, disclaim or otherwise attempt to limit any damages available to the State of Kansas or its agencies at law, including but not limited to, the implied warranties of merchantability and fitness for a particular purpose.

8. Representative's Authority to Contract: By signing this contract, the representative of the contractor thereby represents that such person is duly authorized by the contractor to execute this contract on behalf of the contractor and that the contractor agrees to be bound by the provisions thereof.

9. Responsibility for Taxes: The State of Kansas and its agencies shall not be responsible for, nor indemnify a contractor for, any federal, state or local taxes which may be imposed or levied upon the subject matter of this contract.

10. **Insurance:** The State of Kansas and its agencies shall not be required to purchase any insurance against loss or damage to property or any other subject matter relating to this contract, nor shall this contract require them to establish a "self-insurance" fund to protect against any such loss or damage. Subject to the provisions of the Kansas Tort Claims Act (K.S.A. 75-6101, et seq.), the contractor shall bear the risk of any loss or damage to any property in which the contractor holds title.

11. **Information:** No provision of this contract shall be construed as limiting the Legislative Division of Post Audit from having access to information pursuant to K.S.A. 46-1101, et seq.

12. **The Eleventh Amendment:** "The Eleventh Amendment is an inherent and incumbent protection with the State of Kansas and need not be reserved, but prudence requires the State to reiterate that nothing related to this contract shall be deemed a waiver of the Eleventh Amendment."

13. **Campaign Contributions / Lobbying:** Funds provided through a grant award or contract shall not be given or received in exchange for the making of a campaign contribution. No part of the funds provided through this contract shall be used to influence or attempt to influence an officer or employee of any State of Kansas agency or a member of the Legislature regarding any pending legislation or the awarding, extension, continuation, renewal, amendment or modification of any government contract, grant, loan, or cooperative agreement.